



**Bill Number: H.B. 2249**

**Mesnard ADD COW Floor Amendment**

**Reference to: Senate engrossed House bill**

**Amendment drafted by: Mason Holler**

## **FLOOR AMENDMENT EXPLANATION**

---

1. Specifies that a governmental entity or institution employee who is found liable of facilitating, encouraging or coercing a minor child to withhold information from the child's parent is personally liable in an amount of \$20,000 for each instance in which information was withheld from the parent.
2. Removes the specification that, if an act that violates the Parents' Bill of Rights occurred before the general effective date and the person continues to violate the Parents' Bill of Rights after the general effective date, each act that occurs after the general effective date constitutes a separate violation for the purposes of bringing suit for a violation.
3. Determines that, within six months of the general effective date, the state, a political subdivision or governmental entity or institution has an affirmative duty to investigate and discover all previous instances in which it or its employees facilitated, encouraged or coerced a minor child to withhold information from the child's parent before the effective date.
4. Specifies that the state, a political subdivision or a governmental entity or institution or an employee of such entities is civilly liable to the parent of a minor child for any violation that was not disclosed only if the violation was actually known or would have been discovered with reasonable diligence and investigation.
5. Defines *distinct act or omission*, *instance* and *withhold* for the purposes of bringing suit for a violation of the Parents' Bill of Rights as outlined.
6. Makes technical and conforming changes.

ADDITIONAL COW  
MESNARD FLOOR AMENDMENT  
SENATE AMENDMENTS TO H.B. 2249  
(Reference to Senate engrossed House bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 1-602, Arizona Revised Statutes, is amended to  
3 read:

4 1-602. Parents' bill of rights: governmental interference  
5 restricted; burden of proof; civil actions;  
6 definitions

7 A. All parental rights are exclusively reserved to a parent of a  
8 minor child without obstruction or interference from this state, any  
9 political subdivision of this state, any other governmental entity or any  
10 other institution, including:

11 1. The right to direct the education of the minor child.

12 2. All rights of parents identified in title 15, including the  
13 right to access and review all records relating to the minor child.

14 3. The right to direct the upbringing of the minor child.

15 4. The right to direct the moral or religious training of the minor  
16 child.

17 5. The right to make all health care decisions for the minor child,  
18 including rights pursuant to sections 15-873, 36-2271 and 36-2272, unless  
19 otherwise prohibited by law.

20 6. The right to request, access and review all written and  
21 electronic medical records of the minor child unless otherwise prohibited  
22 by law or unless the parent is the subject of an investigation of a crime  
23 committed against the minor child and a law enforcement official requests  
24 that the information not be released.

25 7. The right to consent in writing before a biometric scan of the  
26 minor child is made pursuant to section 15-109.

1       8. The right to consent in writing before any record of the minor  
2 child's blood or deoxyribonucleic acid is created, stored or shared,  
3 except as required by section 36-694, or before any genetic testing is  
4 conducted on the minor child pursuant to section 12-2803 unless authorized  
5 pursuant to section 13-610 or a court order.

6       9. The right to consent in writing before this state or any of its  
7 political subdivisions makes a video or voice recording of the minor  
8 child, unless the video or voice recording is made during or as a part of  
9 a court proceeding, by law enforcement officers during or as part of a law  
10 enforcement investigation, during or as part of an interview in a criminal  
11 or child safety services investigation or to be used solely for any of the  
12 following:

13       (a) Safety demonstrations, including the maintenance of order and  
14 discipline in the common areas of a school or on pupil transportation  
15 vehicles.

16       (b) A purpose related to a legitimate academic or extracurricular  
17 activity.

18       (c) A purpose related to regular classroom instruction.

19       (d) Security or surveillance of buildings or grounds.

20       (e) A photo identification card.

21       10. The right to be notified promptly if an employee of this state,  
22 any political subdivision of this state, any other governmental entity or  
23 any other institution suspects that a criminal offense has been committed  
24 against the minor child by someone other than a parent, unless the  
25 incident has first been reported to law enforcement and notifying the  
26 parent would impede a law enforcement or child safety services  
27 investigation. This paragraph does not ~~create~~ ESTABLISH any new  
28 obligation for school districts and charter schools to report misconduct  
29 between students at school, such as fighting or aggressive play, that is  
30 routinely addressed as a student disciplinary matter by the school.

31       11. The right to obtain information about a child safety services  
32 investigation involving the parent pursuant to section 8-807.

33       12. THE RIGHT TO CONSENT IN WRITING AND BE INFORMED IF ANY SCHOOL  
34 EMPLOYEE FACILITATES OR IMPLEMENTS ANY FORM OF SOCIAL TRANSITIONING FOR  
35 THE MINOR CHILD, INCLUDING ADDRESSING OR REFERRING TO THE MINOR CHILD BY A  
36 NAME OR NICKNAME OTHER THAN THE MINOR CHILD'S LEGAL NAME OR A NATURAL  
37 DERIVATIVE OF THAT NAME OR REFERRING TO THE MINOR CHILD USING PRONOUNS,  
38 TITLES OR PERSONAL IDENTIFIERS THAT DO NOT ALIGN WITH THE MINOR CHILD'S  
39 SEX. A SCHOOL DISTRICT OR SCHOOL EMPLOYEE MAY NOT FACILITATE OR IMPLEMENT  
40 ANY FORM OF SOCIAL TRANSITIONING FOR A MINOR [CHILD] WITHOUT THE WRITTEN  
41 CONSENT OF EACH OF THE [~~MINOR'S PARENTS~~] [PARENTS OF THE MINOR CHILD].

42       13. IN ADDITION TO THE REQUIREMENTS PRESCRIBED IN PARAGRAPH 2 OF  
43 THIS SUBSECTION, THE RIGHT TO REQUEST, REVIEW AND ACCESS THE MINOR CHILD'S  
44 COMPLETE EDUCATIONAL RECORD. A SCHOOL EMPLOYEE MAY NOT WITHHOLD  
45 INFORMATION FROM A PARENT REGARDING THE PARENT'S MINOR CHILD, INCLUDING  
46 ANY INFORMATION IN THE MINOR CHILD'S EDUCATIONAL RECORD REGARDING THE  
47 MINOR CHILD'S PHYSICAL, EMOTIONAL, MENTAL OR ACADEMIC WELL-BEING.

1 B. This section does not authorize or allow a parent to engage in  
2 conduct that is unlawful or to abuse or neglect a child in violation of  
3 the laws of this state. This section does not prohibit courts, law  
4 enforcement officers or employees of a government agency responsible for  
5 child welfare from acting in their official capacity within the scope of  
6 their authority. This section does not prohibit a court from issuing an  
7 order that is otherwise allowed by law.

8 C. Any attempt to FACILITATE, encourage or coerce OR ANY COMPLETED  
9 ACT THAT FACILITATES, ENCOURAGES OR COERCES a minor child to withhold  
10 information from the child's parent is grounds for discipline of an  
11 employee of this state, any political subdivision of this state, any other  
12 governmental entity or any other institution, except for law enforcement  
13 personnel WHO HAVE PROBABLE CAUSE TO BELIEVE THAT A CRIME WAS COMMITTED BY  
14 THE MINOR CHILD'S PARENT AND WHO WITHHOLDS THAT INFORMATION IN THE COURSE  
15 OF AN INVESTIGATION OF THAT CRIME. THIS STATE, A POLITICAL SUBDIVISION OF  
16 THIS STATE, A GOVERNMENTAL ENTITY OR AN INSTITUTION MAY NOT MAINTAIN A  
17 POLICY THAT ALLOWS AN EMPLOYEE TO FACILITATE, ENCOURAGE OR COERCE A MINOR  
18 CHILD TO WITHHOLD INFORMATION FROM THE MINOR CHILD'S PARENT.

19 D. Unless those rights have been legally waived or legally  
20 terminated, parents have inalienable rights that are more comprehensive  
21 than those listed in this section. This chapter does not prescribe all  
22 rights of parents or preempt or foreclose claims or remedies in support of  
23 parental rights that are available under the constitution, statutes or  
24 common law of this state. Unless otherwise required by law, the rights of  
25 parents of minor children shall not be limited or denied.

26 E. Except as prescribed in subsections F and ~~G~~ H of this section,  
27 this state, a political subdivision of this state or any other  
28 governmental entity, or any official of this state, a political  
29 subdivision of this state or any other governmental entity acting under  
30 color of law, shall not interfere with or usurp the fundamental right of  
31 parents to direct the upbringing, education, health care and mental health  
32 of their children. A parent may bring suit against a governmental entity  
33 or official described in this subsection based on any violation of the  
34 statutory rights set forth in this chapter or any other action that  
35 interferes with or usurps the fundamental right of parents to direct the  
36 upbringing, education, health care and mental health of their children in  
37 the superior court in the county in which the violation or other action  
38 occurs or in federal court, if authorized by federal law, or before an  
39 administrative tribunal of appropriate jurisdiction. A parent may raise a  
40 violation of this chapter as a claim or a defense. IN ANY ACTION BROUGHT  
41 UNDER THIS SECTION, A SHOWING OF A VIOLATION OF THE RIGHTS GUARANTEED OR  
42 RECOGNIZED BY THIS SECTION ESTABLISHES A REBUTTABLE PRESUMPTION OF  
43 IRREPARABLE HARM.

44 F. In any action under subsection E of this section, the  
45 governmental entity or official described in subsection E of this section  
46 has the burden of proof to demonstrate both of the following:

1           1. That the interference or usurpation is essential to accomplish a  
2 compelling government interest of the highest order, as long recognized in  
3 the history and traditions of this state in the operation of its  
4 regulatory powers.

5           2. That the method of interference or usurpation used by the  
6 government is narrowly tailored and is not otherwise served by a less  
7 restrictive means.

8           G. THIS STATE, ANY POLITICAL SUBDIVISION OF THIS STATE OR ANY  
9 OFFICIAL ACTING UNDER COLOR OF LAW EXPRESSLY WAIVES ALL CLAIMS TO  
10 SOVEREIGN, QUALIFIED OR DISCRETIONARY IMMUNITY FOR ANY VIOLATION OF THIS  
11 SECTION.

12         ~~H.~~ H. A governmental entity or official described in subsection E  
13 of this section may interfere with or usurp the fundamental right of  
14 parents to direct the upbringing, education, health care and mental health  
15 of their children only if the governmental entity or official successfully  
16 demonstrates both elements described in subsection F of this section. If  
17 the governmental entity or official is unsuccessful, the court shall grant  
18 appropriate relief, ~~such as~~ INCLUDING declaratory or injunctive relief,  
19 compensatory damages and attorney fees, based on the facts of the case and  
20 the law as applied to the facts. AT A MINIMUM, THE GOVERNMENTAL ENTITY IS  
21 LIABLE TO THE MINOR CHILD'S PARENT IN AN AMOUNT OF \$500,000 [FOR EACH  
22 INSTANCE OF INTERFERING WITH OR USURPING A FUNDAMENTAL RIGHT], AND A  
23 GOVERNMENT OFFICIAL IS PERSONALLY LIABLE TO THE MINOR CHILD'S PARENT IN AN  
24 AMOUNT OF \$20,000 FOR EACH [SEPARATE] INSTANCE OF INTERFERING WITH OR  
25 USURPING A FUNDAMENTAL RIGHT. A GOVERNMENTAL ENTITY THAT EMPLOYS THE  
26 OFFICIAL MAY NOT INDEMNIFY AN OFFENDING OFFICIAL AND MAY NOT USE PUBLIC  
27 MONIES TO PAY FOR THE OFFICIAL'S LIABILITY. THE RIGHT TO SUE BELONGS  
28 INDIVIDUALLY TO EACH OF THE MINOR CHILD'S PARENTS, AND ONE PARENT MAY FILE  
29 SUIT EVEN IF THE MINOR CHILD'S OTHER PARENT DOES NOT CONSENT TO THE  
30 ACTION.

31           I. IN ADDITION TO SUBSECTION H OF THIS SECTION, A MINOR CHILD'S  
32 PARENT MAY BRING SUIT AGAINST AN EMPLOYEE WHO HAS OR WHO HAS ATTEMPTED TO  
33 FACILITATE, ENCOURAGE OR COERCE A MINOR CHILD TO WITHHOLD INFORMATION FROM  
34 THE MINOR CHILD'S PARENT. AT A MINIMUM, AN EMPLOYEE WHO IS FOUND LIABLE  
35 IS PERSONALLY LIABLE IN AN AMOUNT OF \$20,000 [FOR EACH INSTANCE IN WHICH  
36 INFORMATION WAS WITHHELD FROM THE MINOR CHILD'S PARENT], AND A  
37 GOVERNMENTAL ENTITY THAT EMPLOYS THE EMPLOYEE MAY NOT INDEMNIFY AN  
38 OFFENDING EMPLOYEE AND MAY NOT USE PUBLIC MONIES TO PAY FOR THE EMPLOYEE'S  
39 LIABILITY. A PARENT MAY BRING SUIT AGAINST THIS STATE, ANY POLITICAL  
40 SUBDIVISION OF THIS STATE OR ANY OTHER GOVERNMENTAL ENTITY OR INSTITUTION  
41 THAT MAINTAINS A POLICY THAT ALLOWS THE FACILITATION, ENCOURAGEMENT OR  
42 COERCION BY THE EMPLOYEE OF A MINOR CHILD TO WITHHOLD INFORMATION FROM THE  
43 MINOR CHILD'S PARENT. AT A MINIMUM, THE GOVERNMENTAL ENTITY OR  
44 INSTITUTION THAT MAINTAINED THE POLICY IS LIABLE TO THE MINOR CHILD'S  
45 PARENT FOR \$500,000 FOR EACH [OCCURRENCE] [INSTANCE] IN WHICH INFORMATION  
46 WAS WITHHELD FROM THE MINOR CHILD'S PARENT. THE RIGHT TO SUE BELONGS  
47 INDIVIDUALLY TO EACH OF THE MINOR CHILD'S PARENTS, AND ONE PARENT MAY FILE

1 SUIT EVEN IF THE MINOR CHILD'S OTHER PARENT DOES NOT CONSENT TO THE  
2 ACTION. THE STATUTE OF LIMITATIONS FOR AN ACTION COMMENCED PURSUANT TO  
3 THIS SUBSECTION IS FIVE YEARS AFTER THE CONDUCT CEASED AND THE MINOR  
4 CHILD'S PARENT BECAME AWARE OF THE CONDUCT. ~~[IF AN ACT THAT VIOLATES THIS~~  
5 ~~SECTION OCCURRED BEFORE THE EFFECTIVE DATE OF THIS AMENDMENT TO THIS~~  
6 ~~SECTION AND THE PERSON CONTINUES TO VIOLATE THIS SECTION AFTER THE~~  
7 ~~EFFECTIVE DATE OF THIS AMENDMENT TO THIS SECTION, EACH ACT THAT OCCURS~~  
8 ~~AFTER THE EFFECTIVE DATE OF THIS AMENDMENT TO THIS SECTION CONSTITUTES A~~  
9 ~~SEPARATE VIOLATION FOR THE PURPOSES OF THIS SECTION.]~~

10 J. A MINOR CHILD'S PARENT MAY DEMONSTRATE THAT A GOVERNMENTAL  
11 ENTITY OR INSTITUTION MAINTAINED A POLICY OF FACILITATING, ENCOURAGING OR  
12 COERCING A MINOR CHILD TO WITHHOLD INFORMATION FROM THE MINOR CHILD'S  
13 PARENT THROUGH ANY OF THE FOLLOWING:

14 1. WRITTEN DOCUMENTS THAT ARE MAINTAINED BY THE GOVERNMENTAL ENTITY  
15 OR INSTITUTION, INCLUDING AS GUIDANCE OR POLICY DOCUMENTS, EMAILS,  
16 MEMORANDA OR SPREADSHEETS.

17 2. DEMONSTRATING THAT A PERSON WHO HAS SUPERVISORY AUTHORITY IN THE  
18 GOVERNMENTAL ENTITY OR INSTITUTION REQUIRED OR RECOMMENDED THAT EMPLOYEES  
19 ENGAGE IN THE CONDUCT.

20 3. DEMONSTRATING THAT THE GOVERNMENTAL ENTITY'S OR INSTITUTION'S  
21 EMPLOYEES REGULARLY ENGAGED IN THE CONDUCT. A CAUSE OF ACTION ACCRUES  
22 SEPARATELY FOR EACH ~~[DISTINCT ACT]~~ [INSTANCE] OF FACILITATING, ENCOURAGING  
23 OR COERCING A MINOR CHILD TO WITHHOLD INFORMATION FROM THE MINOR CHILD'S  
24 PARENT. FAILING TO ABIDE BY A PARENT'S EXPRESS REQUEST OR HIDING THE ISSUE  
25 FROM A PARENT CONSTITUTES A SEPARATE VIOLATION THAT TRIGGERS A NEW ACCRUAL  
26 DATE, REGARDLESS OF WHEN THE PARENT FIRST SUSPECTED A SOCIAL TRANSITION  
27 WAS OCCURRING.

28 K. WITHIN SIX MONTHS AFTER THE EFFECTIVE DATE OF THIS AMENDMENT TO  
29 THIS SECTION, THIS STATE, A POLITICAL SUBDIVISION OF THIS STATE OR A  
30 GOVERNMENTAL ENTITY OR INSTITUTION, INCLUDING AN EDUCATIONAL INSTITUTION,  
31 ~~[HAS AN AFFIRMATIVE DUTY TO INVESTIGATE AND DISCOVER ALL PREVIOUS~~  
32 ~~INSTANCES IN WHICH IT]~~ OR AN EMPLOYEE OF THIS STATE, A POLITICAL  
33 SUBDIVISION OF THIS STATE OR A GOVERNMENTAL ENTITY OR INSTITUTION ~~[THAT]~~  
34 FACILITATED, ENCOURAGED OR COERCED, OR ATTEMPTED TO FACILITATE, ENCOURAGE  
35 OR COERCE, A MINOR CHILD TO WITHHOLD INFORMATION FROM THE MINOR CHILD'S  
36 PARENT BEFORE THE EFFECTIVE DATE OF THIS AMENDMENT TO THIS SECTION~~[. THIS~~  
37 ~~STATE, A POLITICAL SUBDIVISION OF THIS STATE OR A GOVERNMENTAL ENTITY OR~~  
38 ~~INSTITUTION, INCLUDING AN EDUCATIONAL INSTITUTION, OR AN EMPLOYEE OF THIS~~  
39 ~~STATE, A POLITICAL SUBDIVISION OF THIS STATE OR A GOVERNMENTAL ENTITY OR~~  
40 ~~INSTITUTION WHO FACILITATED, ENCOURAGED OR COERCED, OR ATTEMPTED TO~~  
41 ~~FACILITATE, ENCOURAGE OR COERCE, A MINOR CHILD TO WITHHOLD INFORMATION~~  
42 ~~FROM THE MINOR CHILD'S PARENT BEFORE THE EFFECTIVE DATE OF THIS AMENDMENT~~  
43 ~~TO THIS SECTION]~~ SHALL DISCLOSE ~~[THE]~~ [ANY KNOWN] OFFENDING ACTION TO THE  
44 MINOR CHILD'S PARENT. THIS STATE, A POLITICAL SUBDIVISION OF THIS STATE OR  
45 A GOVERNMENTAL ENTITY OR INSTITUTION, INCLUDING AN EDUCATIONAL  
46 INSTITUTION, OR AN EMPLOYEE OF THIS STATE, A POLITICAL SUBDIVISION OF THIS  
47 STATE OR A GOVERNMENTAL ENTITY OR INSTITUTION IS CIVILLY LIABLE TO THE

1 PARENT OF A MINOR CHILD FOR ANY VIOLATION THAT WAS NOT DISCLOSED PURSUANT  
2 TO THIS SUBSECTION [IF THE VIOLATION WAS ACTUALLY KNOWN OR WOULD HAVE BEEN  
3 DISCOVERED WITH REASONABLE DILIGENCE AND INVESTIGATION]. THIS STATE, A  
4 POLITICAL SUBDIVISION OF THIS STATE OR A GOVERNMENTAL ENTITY OR  
5 INSTITUTION, INCLUDING AN EDUCATIONAL INSTITUTION, IS LIABLE TO THE MINOR  
6 CHILD'S PARENT FOR AT LEAST \$500,000 FOR EACH ~~[SEPARATE ACT]~~ [INSTANCE]  
7 THAT WAS NOT DISCLOSED TO THE MINOR CHILD'S PARENT. AN EMPLOYEE OF THIS  
8 STATE, A POLITICAL SUBDIVISION OF THIS STATE OR A GOVERNMENTAL ENTITY OR  
9 INSTITUTION IS PERSONALLY LIABLE TO THE MINOR CHILD'S PARENT FOR AT LEAST  
10 \$20,000 FOR EACH ~~[SEPARATE ACT]~~ [INSTANCE] THAT WAS NOT DISCLOSED TO THE  
11 MINOR CHILD'S PARENT. A GOVERNMENTAL ENTITY OR INSTITUTION MAY NOT  
12 INDEMNIFY AN OFFENDING EMPLOYEE AND MAY NOT USE PUBLIC MONIES TO PAY FOR  
13 THE EMPLOYEE'S LIABILITY OR AN INSURANCE POLICY TO COVER THE CIVIL  
14 LIABILITY.

15 ~~H.~~ L. For the purposes of this section: ~~;~~

16 [1. "DISTINCT ACT OR OMISSION" MEANS AN ACT OR OMISSION THAT  
17 DIFFERS FROM ANOTHER ACT OR OMISSION IN ONE OF THE FOLLOWING WAYS:

18 (a) THE GOVERNMENTAL ENTITY OR OFFICIAL WHO PERFORMED OR DIRECTED  
19 THE ACT OR OMISSION IS DIFFERENT.

20 (b) THE SPECIFIC FUNDAMENTAL RIGHT THAT IS INVOLVED IS DIFFERENT.

21 (c) THE OCCASION OR EPISODE DURING WHICH THE ACT OR OMISSION  
22 OCCURRED IS DIFFERENT AND THERE IS NOT A SINGLE, CONTINUOUS, UNINTERRUPTED  
23 EXERCISE OF AUTHORITY.

24 (d) THE ACT OR OMISSION OCCURRED AFTER THE GOVERNMENTAL ENTITY OR  
25 OFFICIAL RECEIVED ACTUAL OR CONSTRUCTIVE NOTICE, WHETHER THROUGH A WRITTEN  
26 DEMAND, A PREVIOUS COURT ORDER OR AN EXPRESS ORAL OR WRITTEN OBJECTION  
27 FROM THE MINOR CHILD'S PARENT.]

28 ~~[1.]~~ [2.] "EDUCATIONAL RECORD" INCLUDES ATTENDANCE RECORDS, TEST  
29 SCORES FROM SCHOOL-ADMINISTERED TESTS AND STATEWIDE ASSESSMENTS, GRADES,  
30 EXTRACURRICULAR ACTIVITY OR CLUB PARTICIPATION RECORDS, EMAIL ACCOUNT  
31 RECORDS, ONLINE OR VIRTUAL ACCOUNTS OR DATA, DISCIPLINARY RECORDS,  
32 COUNSELING RECORDS, PSYCHOLOGICAL RECORDS, APPLICATIONS FOR ADMISSION,  
33 HEALTH AND IMMUNIZATION INFORMATION, INCLUDING ANY MEDICAL RECORDS  
34 MAINTAINED BY A HEALTH CLINIC OR MEDICAL FACILITY THAT IS OPERATED OR  
35 CONTROLLED BY A SCHOOL DISTRICT OR THAT IS LOCATED ON SCHOOL DISTRICT  
36 PROPERTY, TEACHER AND COUNSELOR EVALUATIONS, REPORTS OF THE MINOR CHILD'S  
37 BEHAVIORAL PATTERNS, THERAPY NOTES AND TREATMENT PLAN.

38 ~~[2.]~~ [3.] "INSTANCE" MEANS EACH ~~[DAY THAT INCLUDES A COMMUNICATION,~~  
39 ~~MESSAGE, COMMENT OR OTHER ACT THAT VIOLATES THIS SECTION]~~ [SEPARATE ACT OR  
40 OMISSION THAT INTERFERES WITH OR USURPS A FUNDAMENTAL RIGHT EXCEPT THAT  
41 EACH DISTINCT ACT OR OMISSION BEYOND THE FIRST ACT OR OMISSION CONSTITUTES  
42 AN ADDITIONAL INSTANCE, UNLESS IT IS BY THE SAME GOVERNMENTAL ENTITY OR  
43 OFFICIAL ENGAGING IN REPEATED ACTS OF THE SAME NATURE, DIRECTED AT THE  
44 SAME MINOR CHILD AND THE SAME FUNDAMENTAL RIGHT AND OCCURS WITHIN A SINGLE  
45 SCHOOL YEAR OR A TWELVE-MONTH PERIOD, THEN THE REPEATED ACTS CONSTITUTE A  
46 MINIMUM OF ONE INSTANCE PER SCHOOL YEAR OR TWELVE-MONTH PERIOD].

1       ~~[3.]~~ [4.] "Parent" means the natural or adoptive parent or legal  
2 guardian of a minor child.

3       ~~[4.]~~ [5.] "SOCIAL TRANSITIONING" MEANS THE PROCESS IN WHICH A  
4 PERSON GOES FROM IDENTIFYING WITH AND LIVING AS A GENDER THAT CORRESPONDS  
5 TO THE PERSON'S SEX TO IDENTIFYING WITH AND LIVING AS A GENDER THAT IS  
6 DIFFERENT FROM THE PERSON'S SEX AND MAY INVOLVE SOCIAL, LEGAL OR PHYSICAL  
7 CHANGES.

8       ~~[5.]~~ [6.] "WITHOLD" ~~[INCLUDES ALL OF THE FOLLOWING]:~~

9       ~~[(a) DECLINING TO NOTIFY A PARENT OR GUARDIAN.~~

10       ~~(b) INSTRUCTING A STUDENT TO KEEP INFORMATION FROM A PARENT OR~~  
11 ~~GUARDIAN.~~

12       ~~(c) OTHERWISE PREVENTING A PARENT OR GUARDIAN FROM ACCESSING~~  
13 ~~INFORMATION TO WHICH THE PARENT OR GUARDIAN IS ENTITLED PURSUANT TO THIS~~  
14 ~~SECTION.]~~

15       ~~[(a) MEANS TO KNOWINGLY FAIL TO DISCLOSE, CONCEAL OR PREVENT THE~~  
16 ~~COMMUNICATION OF INFORMATION TO A PARENT, WHETHER BY AN AFFIRMATIVE ACT OF~~  
17 ~~CONCEALMENT, BY DECLINING TO RESPOND TO A PARENT'S INQUIRY OR BY OMITTING~~  
18 ~~INFORMATION FROM A COMMUNICATION WITH THE PARENT IF THE GOVERNMENTAL~~  
19 ~~ENTITY OR EMPLOYEE KNOWS OR REASONABLY SHOULD HAVE KNOWN THAT THE PARENT~~  
20 ~~WAS ENTITLED TO THAT INFORMATION PURSUANT TO THIS SECTION.]~~

21       ~~(b) DOES NOT INCLUDE A GOOD FAITH DELAY IN PROVIDING INFORMATION~~  
22 ~~THAT IS PENDING VERIFICATION OF THE INFORMATION'S ACCURACY IF THE~~  
23 ~~INFORMATION IS DISCLOSED TO THE PARENT WITHIN A REASONABLE TIME AND NOT~~  
24 ~~LATER THAN FIVE BUSINESS DAYS AFTER THE GOOD FAITH DELAY BEGINS.]~~

25 Enroll and engross to conform

26 Amend title to conform

J.D. MESNARD

2249MESNARD0325.docx

04/20/2026

03:25 PM

S: MH/ci

130HQJNSJ